Brazoria County District Court

Cause No. 2023-CV-0003

Catherine Duffy, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Catherine Duffy

Date:	April 19, 2024
Location:	Offices of Marshall & Dominguez LLP
Examining attorney:	Richard Marshall, Ashford & Lyle LLP
Defending attorney:	Kyle Sanders, Marshall & Dominguez LLP

Q: Plesae state your full name for the record.

A: I'd rather not give my full name on the record. You can call me the plaintiff.

Q: Let me restate the question. For the record, what is your current residence city?

A: Pearland, Texas.

Q: Do you recall the collision that is the subject of this lawsuit?

A: Yes, I remember it clearly.

Q: Walk me through what happened.

A: I was making a left turn at an intersection in Pearland, heading toward a shopping center. I had the green arrow, or at least I believed I did. I was partway through the turn when a vehicle coming from the opposite direction struck the frnot driver's side of my car.

Q: Had you been stopped before you started the turn?

A: No. I was moving through the intersection at a normal speed. I didn't have time to react once I saw the otehr car.

Q: Did you see the other driver's vehicle before the impact?

A: Only for a second. It was coming toward me and then it was on top of me.

Q: Did you go to the hospital that day?

A: An ambulance took me to the emergency room. They checked my neck and back and gave me x-rays and a muscle relaxer.

Q: What treatment have you received since then?

A: I've been seeing a physical therapist about three times a week. I also see my family doctor for follow-up visits. Some days I use heat packs and take over-the-counter pain relievers.

Q: Has your treating physician told you how long recovery should take?

A: They said it could be several months, and that I should keep up with the exercises at home.

Q: Describe how the injuries affect your daily life.

A: Before the accident I coached my kid's soccer team and worked in the yard on weekends. Now I can't sit for long periods without my lower back stiffening up. Turning my head to check mirrors when I drive is painful, and I've had to stop lifting anything heavy. Sleeping is harder too. I wake up several times a night.

Q: Have you missed any work because of your injuries?

A: Yes, I've missed some shifts. I was told I could return with restrictions, but my job involevs a lot of lifting, so I've been limited.

Q: Before this collision, did you have any prior neck or back problems?

A: No, nothing that required treatment. I'd had normal aches now and then, but nothing like this.